Statement of Work

1.0 Master Agreement

1.1 Supplier Information

NIHVA Technologies Pvt. Ltd.
187, G-Block, Thermax chowk, MIDC
Chinchwad, Pune – 411019
Santosh Bangar
Contact NO. : 9168938333
Email Address: service@nivha.com

1.2 Purchaser Information

GKN Fokker Elmo India Pvt. Ltd,
Embassy Industrial Park, Block G
Plot no A-79, Chakan industrial area Phase 2,
Village Savardari, Pune 410501.

1.3 Professional Services Agreement

This Statement of Work is entered into pursuant to the Professional Services Agreement, dated **30-June-2020**, between **NIHVA** and GKN, the provisions of which are incorporated herein by reference.

1.4 Parties

Unless the context otherwise indicates, in this document, the words “we”, “our” or “us” refer to the Purchaser, and the words “you” or “your” refer to the Supplier.

2.0 Products and/or Services

2.1 Services

The services you agree to provide to us from time to time are listed in the Pricing Exhibit.

2.2 Changes and Maintenance

We and you may jointly agree to changes to the Pricing Exhibit from time to time. We will maintain the most recent version of the Pricing Exhibit and will provide you a copy when you request.

3.0 Prices and Payment Terms

3.1 Pricing

The initial prices for the Services are listed in the Pricing Exhibit and will remain fixed for a period of at least one year from the date this Agreement is executed. After the first year, you may propose changes to the prices, not more frequently than annually, by presenting the changes to us in writing at least 60 days before the change would take effect. You will use reasonable efforts to offset any material price increases before proposing any price increase to us and provide us with appropriate supporting documentation for any proposed price change. All amounts in the Pricing Exhibit include any applicable taxes, unless specified otherwise.

3.2 Invoicing and Payment

You will issue invoices to us **(Visit Basis)** which will contain all applicable legal and tax requirements. We will pay the invoiced amount (other than any amount we dispute in good faith) within 30 days of our receipt of the invoice.

Your acceptance of payment of the invoiced amount will waive any claims you may have for payment for the Products or Services covered by the invoice.

No invoice will be paid without a matching Purchase Order and goods receipts.

3.3 Invoice Detail

Each of your invoices must include the following information:

- P.O number
- Delivery Bill number
- Detail of delivered products/Services with unit prices
- Delivered quantities per product
- Terms of delivery
- Terms of payments
- Delivery date
- All tax and legal requirements pursuant to applicable laws

3.4 Set-offs

We may reduce or withhold payment to you for any amount that you owe us or if you fail to pay any third parties for labor, materials, or other costs you incur in the performance of this Agreement.

4.0 Term and Termination

4.1 Term

This agreement will be in effect from the date of last signature and will remain in effect until terminated by you or us.

4.2 Termination by Supplier

You may terminate this Agreement at any time by notifying us in writing. Such termination will be effective **30 Days** after we receive your notice or such later date as you may specify in your notice.

4.3 Termination by Purchaser

We may terminate this Agreement at any time by notifying you in writing. Such termination will be effective **30 Days** after you receive our notice or such later date as we may specify in our notice.

4.4 Termination for Cause

You may terminate this Agreement if we have materially breached this Agreement by notifying us in writing. Such termination will be effective 30 Days after we receive such notice.

We may terminate this Agreement if you have materially breached this Agreement by notifying you in writing. Such termination will be effective 30 Days after you receive such notice or such later date as we may specify in our notice.

4.5 Bankruptcy or Change in Control of Supplier

You will notify us immediately if you (or all or substantially all of your assets) become subject to any bankruptcy, receivership, insolvency or similar proceeding. You will give us at least 30 days' advance written notice of any change in control of you or any sale of all or substantially all of your assets. In either of such events, we will have the right to terminate this Agreement and the Master Agreement thereafter by notifying you in writing, and such termination will be effective on the date specified in our notice.

5.0 Order and Delivery Terms

5.1 Purchase Orders

We may issue Purchase Orders to you using any of the following methods:

- Electronic data interchange (EDI),
- Email or
- Any other method as we may both agree from time to time.

5.2 Order Confirmation

You will confirm your acceptance or rejection of a Purchase Order within **48 Hrs.** Of receipt. If we do not receive your acceptance or rejection within that timeframe, you will be deemed to have accepted the Purchase Order.

You must send your acceptance or rejection to us by the same method as we sent you the Purchase Order.

Each of your acceptances must include the following information:

- your name and address
- our purchase order number

5.3 Order Modifications

Once we have submitted a Purchase Order, we may cancel or change the Purchase Order upon notice to you as long as the amount of time remaining to the delivery time specified on the Purchase Order exceeds the applicable lead time specified in the Pricing Exhibit. We will negotiate with you in advance any order drop ins or change requests that we make which do not comply with the specified lead times.
You will respond to our order modification requests within two business hours, and we will issue a new or revised Purchase Order as soon as we reach agreement on the modification.

5.4 Scheduling

You will provide us with sufficient advance notice of scheduled shutdowns, holidays and union contract expirations or renegotiations.

6.0 Supplier's Performance

6.1 Contractor Environment Health and Safety Handbook

You acknowledge that you have received and read our Contractor Environment, Health & Safety Handbook, and you agree to comply with all of its provisions. We may update or modify the handbook at any time upon written notice to you, and you agree to comply with all of its provisions as updated or modified. In the event you believe there is a need to deviate from any provision of the handbook, you will notify the applicable GKN Project Manager and obtain his or her written approval before proceeding.

You agree that each of your employees who use any of our equipment will have been adequately trained on that equipment by you or on your behalf prior to use and, to the extent applicable, will be licensed or certified to use such equipment. Your employees may not use our equipment unless explicitly approved by the applicable GKN Project Manager and Corporate Health and Safety. You understand that any of your employees who use our equipment will be required to complete a sign a certificate of understanding in a form provided by us.
You understand and agree that all chemicals that you may bring on site to one of our locations must be disclosed to and approved by us in advance.

6.2 Employee testing

You will arrange for the following tests to be conducted for each employee who will perform services pursuant to this Agreement:

- Five panel hair test – drug testing
- Criminal background check – state and federal, felony and misdemeanor
- Motor vehicle record check
- Employment verification
- Education verification
- License/credential verification
- National credit file

You will be responsible for all costs associated with these tests. Any employee who does not successfully pass all of the required tests will not be allowed to perform services for us.

6.0 Key personnel

The following individuals are considered key personnel for the relationship covered by this Agreement:

[Mr. Santosh Bangar]

You will notify us immediately of any departure of any key personnel from our account and consult with us in connection with their replacement.

6.1 Employee status

You will assign to us only individuals that are your employees and not independent contractors.

6.2 Independent contractor

You will require all your employees assigned to us to sign a statement acknowledging they are an independent contractor, and nothing in this Agreement shall be deemed to make them our agent, employee or joint venture. They will not be entitled to any benefits that we provide our employees, including worker's compensation and unemployment insurance.

7.0 Insurance certificates

Service Engineer / Your Employee should have WC/ESIC policy.

8. 0 Intellectual Property

8. 1 Ownership of intellectual property rights

Subject to the provisions of the last paragraph of this section, you agree that all work you create for us pursuant to this Agreement is intended to be wholly owned by us, and you acknowledge and agree that you will retain no rights in intellectual property to such work unless we explicitly agree otherwise in writing.

8.2

Standard Non- comprehensive
AMC offer Servicing includes:

A. Mechanical: Check Points

1. Assembly checking.
2. Alignment.
3. Oiling/ greasing.
4. Other alignment & interlocking checking.
5. All Nuts-Bolts tightening.

B. Electrical: Check Points

1. Main electric connections with motor & control panel connections.
2. Limit Switch Setting.
3. Control Box: Connectors, relay, overhead protection, switches.

8.3

1. 4 visits in a 1 year (within 3 months 1 visit) & each visit we will submit you the above Check points reports.
2. Work Time duration : 9 Hrs./day
3. Emergency breakdown charges will be Rs.8,500/- Extra per visit and Intimation for breakdown calls – minimum 24 Hours
4. 2 Free Breakdown per year
5. Forklift and Scaffolding need to arrange by you
6. Hydraulic oil & grease for servicing/lubrication work will be in your scope

Annexure

Sr. No	Description	Amount (Annual) INR
1	Annual Maintenance Contract for Rolling Shutter & Dock Leveler at GKN PUNE	50,000/-

9.0 Dispute Resolution

We both agree that any dispute arising out of this Agreement will be promptly negotiated between our respective executives who have authority to settle the dispute.

Date this Agreement takes effect: 01-July-2020 to 30-June-2021

Name: _____ Name: _____

_____ Its: _____

Signed: _____ Signed: _____